

authorizations for FY23 and move such authorizations be re-established for the purposes stated in the articles."

Motion to approve Articles 12, 13, 15, 16 and 17 passed by a show of voting cards.

ARTICLE 18: To see if the Town will vote to raise and appropriate, or otherwise transfer from available funds, the sum of \$30,000 to the Treasurer's Department for the purpose of paying costs associated with the tax title process; or, take any other action thereon.

Sponsor: Treasurer-Collector

>Motion from Finance Committee (per Chairperson) and seconded: *"Move that the Town raise and appropriate the sum of \$30,000 to the Treasure's Department for the purposes stated in the article."*

Motion passed by a show of voting cards.

ARTICLE 19: To see if the Town will vote to raise and appropriate, or otherwise transfer from available funds, the sum of \$500 to be added to the Conservation Fund as authorized by M.G.L. c. 40, §8C; or, take any other action thereon.

Sponsor: Conservation Committee

>Motion from Finance Committee (per Chairperson) and seconded: *"Move that the Town raise and appropriate the sum of \$500 for the purposes stated in the article."*

Motion passed by a show of voting cards.

ARTICLE 20: To see if the Town will vote to raise and appropriate, borrow, or otherwise fund the sum of \$50,000 to be expended by the Board of Selectmen for the purpose of repairs, maintenance, renovations and weatherization of municipal buildings and or structures, other than schools, owned by the Town of Brimfield, and including any incidental and related expenses; or, take any other action thereon.

Sponsor: Board of Selectmen

>Motion by Finance Committee (per Chairperson) and seconded: *"Move that the Town raise and appropriate the sum of \$50,000 to be expended by the Board of Selectmen for the purposes stated in the article."*

Motion passed by a show of voting cards.

ARTICLE 21: To see if the Town will vote to transfer the sum of \$11,983 received from the Thames River Grant #14-3562-0122 to the Lake Sherman Weed Control account #01-0630-5355, to be expended by the Board of Selectmen, for aquatic vegetation management to control the growth of milfoil in Lake Sherman, including all incidental and related expenses; or, take any other action thereon.

Sponsor: Board of Selectmen

>Motion by Finance Committee (per Chairperson) and seconded: *"Move that the Town raise and appropriate the sum of \$11,983.00 to be expended by the Board of Selectmen for the purposes stated in the article."*

Motion passed by a show of voting cards.

ARTICLE 22: To see if the Town will vote to raise and appropriate, borrow or otherwise fund the sum of \$55,000 to be expended by the Highway Surveyor subject to the requirements of applicable public bidding laws, for the purpose of purchasing a new pickup truck with plow, pursuant to the Town's Capital Expenditure Plan; or take any other action thereon.

Sponsor: Highway Surveyor

>Motion by Finance Committee (per Chairperson) and seconded: *"Move that the Town raise and appropriate the sum of \$55,000.00 to be expended by the Highway Surveyor for the purposes stated in the article."*

Motion passed by a show of voting cards.

ARTICLE 23: To see of the Town will vote to raise and appropriate, borrow or otherwise fund the sum of \$150,000 to be expended by the Highway Surveyor subject to the requirements of applicable public bidding laws, for the purpose of purchasing a new, used dump truck with plow and sander, pursuant to the Town's Capital Expenditure Plan; or take any other action thereon.

Sponsor: Highway Surveyor

>Motion by Finance Committee (per Chairperson) and seconded: *"Move that the Town raise and appropriate the sum of \$150,000 to be expended by the Highway Surveyor for the purposes stated in the article."*

Motion passed by a show of voting cards.

ARTICLE 24: To see if the Town will raise and appropriate, borrow, or otherwise vote to transfer the sum of \$18,000 from the Capital Purchase Stabilization Fund, to be expended by the Chief of Police, subject to the requirements of applicable public bidding laws, for the purchase of two (2) new Yamaha ATVs and a trailer or

any other type all-terrain vehicle(s) and necessary accessories for use by the Brimfield Police Department as a specialized patrol vehicle, or take any other action thereon.

Sponsor: Chief of Police

>Motion by Finance Committee (per Chairperson) and seconded: *"Move that the Town raise and appropriate the sum of \$18,000.00 to be expended by the Chief of Police for the purposes stated in the article."*

Motion failed by secret ballot. 44 yes and 58 no.

ARTICLE 25: To see if the Town will accept the provisions of General Laws, Chapter 59, Section 5, Clause 17E, enacted as Chapter 380, Section 1, of the Acts of 2000, or take any other action thereon.

Sponsor: Board of Assessors

>Motion by Cynthia Powers, Chair of the Board of Assessors and seconded: *"To see if the Town will accept the provisions of General Laws, Chapter 59, Section 5, Clause 17E, enacted as Chapter 380, Section 1, of the Acts of 2000."*

Motion to approve Article 25 approved by a show of voter cards.

ARTICLE 26: To see if the Town will accept the provisions of General Laws, Chapter 59, Clause 41D, enacted as Chapter 380, Section 2, or the Acts of 2000, or take any other action thereon.

Sponsor: Board of Assessors

>Motion by Cynthia Powers, Chair of the Board of Assessors and seconded: *"To see if the Town will accept the provisions of General Laws, Chapter 59, Clause 41D, enacted as Chapter 380, Section 2, or the Acts of 2000."*

Motion to approve Article 26 approved by a show of voter cards.

ARTICLE 27: To see if the Town will vote to amend Chapter 4, Section 1.0 of the General Bylaws, entitled "Officers to be Elected, Terms", to change the Moderator term of office from a one (1) year term to a (3) year term, by deleting the strikethrough text in said section and inserting the underlined text in place thereof the following: or, take any other action thereon. And to change the Tree Warden from a one (1) year term, by deleting the strikethrough text in said section and inserting the underlined text in place therefore the following: or take any other action thereon.

4.0 Election of Officials

4.1 Officers to be Elected, Terms

The Officers of the Town to be elected at the Annual Town Election in the years in which the terms of the incumbents expire, with their terms of office, shall be as follows:

5 Selectmen for 3 years each, 2 that would be elected annually.

One Moderator for ~~the year~~ 3 years, One Town Clerk for 3 years.

3 Assessors for 3 years each

5 members of the Board of Health for 3 years each, 1 elected annually

5 members of the Planning Board for 5 years each, 1 elected annually

One Highway Surveyor for 3 years

5 Members of the Town School Committee for 3 years each

5 Constables for 3 years each

One Tree Warden for ~~one year~~ 3 years

6 Library Trustees for 3 years each, 2 elected annually

3 members of the Cemetery Commission for 3 years each, 1 elected annually

3 members of the Harding Fund Trustees, for 3 years each, 1 elected annually

3 members of the James D. Lincoln Library Fund Trustees for 3 years each, 1 elected annually.

4 members of the Brimfield Housing Authority for 5 years each, one elected as terms expire in accordance with the laws of the Commonwealth.

Members of the Tantasqua Regional District School Committee for 3 years each, to be elected in accordance with the Regional District Agreement, annually and/or as incumbent terms expires.

Sponsor: Moderator

>Motion by the Town Clerk and seconded: *"I motion that the Town approve the article as written."*

Motion to approve Article 27 passed by a show of voting cards.

ARTICLE 28: To see if the Town of Brimfield will vote to amend Chapter 2, Section 7.1 of the General Bylaws, entitled "Bylaw Committee", to delete the text stating June appointment and to change the term from one (1) year to a three (3) year term, and to add two (2) associate members, by deleting the strikethrough text in said section and inserting the underlined text in place thereof the following: or, take any other action thereon.

7.1 Authorization and Appointment

A Bylaw Committee shall be appointed ~~each June~~, as follows: one member and two associate members by the Board of Selectmen, one member by the Moderator and one member by the appointees jointly. The Town

Clerk shall serve as a non-voting member of the committee and shall serve as chairman until an organizational meeting of all members. Terms of appointment shall be ~~one~~ three (3) years, commencing July 1 ~~of each year~~.

Note: Duties of the Bylaw Committee are additionally noted in Ch. One, S. 1.2

Sponsor: Moderator

>Motion by the Town Clerk and seconded: *"I motion that the Town approve the article as written."*

Motion to approve Article 27 passed by a show of voting cards.

ARTICLE 29: To see if the Town of Brimfield will vote to amend Chapter 3, Section 3.4 of the General Bylaws, entitled "Additional Notice Special Meeting", to delete the text stating Mailed to each occupied dwelling house in the Town and to change it to posted on the Town website and the Town notices posting board, by deleting the strikethrough text in said section and inserting the underlined text in place thereof the following: or, take any other action thereon.

3.4 Additional Notice Special Meeting

At least five days before the day fixed in the warrant for any Special Town Meeting, the Selectmen shall cause an outline of the warrant to be ~~mailed to each occupied dwelling house in the Town~~ posted on the Town website and the Town notice posting board. *Sponsor: Town Clerk*

>Motion by the Town Clerk and seconded: *"I motion to table Article 29 at this time."*

No action needed.

ARTICLE 30: To see if the Town of Brimfield will vote to amend Section 7 of the Personnel Bylaws, entitled "Holidays and Holiday Pay", to add, If a holiday falls on any weekday a regular employee is not normally scheduled to work, the holiday will be observed on the employee's preceding workday, and further amending the list of paid holidays by adding Juneteenth by inserting the underlined text thereof the following: or, take any other action thereon.

Section 7: Holidays and Holiday Pay

Employees scheduled to work on a continuing basis for 20 or more hours per week are eligible for holiday pay. The following are paid holidays:

New Year's Day, Martin Luther King, Jr. Birthday, Presidents Day, Patriot's Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving, Christmas Day, Juneteenth

Holiday pay for employees working less than 35 hours, but more than 20 hours per week, shall be the pro-rated schedule of hours (or the employee's regularly scheduled hours for that weekday that the holiday falls on). Temporary/seasonal employees will not receive holiday pay.

Example: An employee who normally works a five-day, 25-hour work schedule each week (5 days @ 5 hours each day), would be entitled to 5 hours holiday pay.

Holidays falling on Saturday shall be observed on Friday and holidays falling on Sunday shall be observed on Monday. If a holiday falls on any weekday a regular employee is not normally scheduled to work, the holiday will be observed on the employee's preceding workday.

Should an employee be required to work on the holiday, an employee shall receive either compensatory time or compensation on a time and one-half basis for every hour worked.

Sponsor: Board of Selectmen

>Motion by Board of Selectmen (per Chairperson) and seconded: *"I motion to approve the article as written."*

Motion to approve Article 30 passed by a show of voting cards.

ARTICLE 31: To see if the Town will vote to amend Section 7 of the Zoning Bylaw, by adding subsection 7.5.3 as follows:

7.5.3 The Planning Board shall require a certificate of compliance from the Zoning Officer. The Planning Board may waive any or all requirements of site plan review at their discretion.

Sponsor: Planning Board

>Motion by David Killian, Chair of the Planning Board and seconded. *"I move that we table this article."*
No action needed.

ARTICLE 32: To see if the Town will vote to amend the General Bylaws of the Town of Brimfield, copies of which are on file with the Town Clerk and available on the municipal website, to rename the Board of Selectmen as the Select Board, by striking out, in every instance in which they appear, the words "Board of Selectmen" and inserting in place thereof the words "Select Board"; and by striking out, in every instance in which they appear, the word "Selectman" and "Selectmen" and inserting in place thereof the words "Select Board Member" or "Select Board Members"; and further, to authorize the Town Clerk to make any non-substantive, ministerial revisions to ensure that gender and numerical issues in the related text of the General Bylaws are revised to properly reflect such change in title; and, further, to amend the General Bylaws, Chapter One, "General Government", Section 6.0, "Legal Affairs," a copy of which is on file with the Town Clerk and available on the municipal website, by amending Section 6.1 as set forth below (amended language shown in boldface type); or take any action relative thereto.

Section 6.0 Legal Affairs

Duties of Select Board

The Select Board shall have all the powers and duties of a board of selectmen under the General Laws and any special laws, bylaws, regulations, or policies applicable to the Town, as well as such other powers and duties as are provided in the Town's Bylaws. The Select Board shall be agents of the Town to institute, prosecute, defend and settle any and all claims, actions and proceedings to which the Town is a party or in which the interests of the Town are or may be involved.

Sponsor: Board of Selectmen

>Motion by the Board of Selectmen (per Chairperson) and seconded: *"We motion to accept the article as written."*

Motion to approve Article 32 passed by a show of voting cards.

ARTICLE 33: To see if the Town will vote to increase the number of voting members on the Historical Commission from seven (7) members to eleven (11) members or take any other action thereon.

Sponsor: Historical Commission

>Motion by Sue DeBruin of the Historical Commission and seconded: *"We, the Historical Commission, recommend and move that the Town vote to establish a Historical Commission as having 7 members and four alternate members, in pursuance with MGL c. 40 s. 8D."*

Motion to approve Article 33 passed by a show of voting cards.

ARTICLE 34: To see if the Town will vote to raise and appropriate borrow, or otherwise transfer from available funds, the total sum of \$50,000.00 to be expended by the Facilities Study Committee, subject to the requirements of applicable public procurement laws, for the development, planning and design of preliminary plans and specifications relative to the possible renovation, replacement, demolition, alteration, or construction of the Town Hall, Town Hall Annex, Library and Senior Center, or take any other action thereon.

Sponsor: Brimfield Facilities Study Committee

>Motion by Finance Committee (per Chairperson) and seconded: *"Recommend and move that the Town raise and appropriate the sum of \$50,000.00 to be expended by the Facilities Study Committee for the purpose stated in the article."*

Motion to approve Article 34 passed by a show of voting cards.

ARTICLE 35: To see if the Town will vote to raise and appropriate, or otherwise transfer from available funds a sum of money to pay principal and interest due in Fiscal Year 2023 on funds borrowed for the Facilities Building Project, Article #22 voted at the May 21, 2018 Annual Town Meeting; or, take any other action thereon.

Sponsor: Finance Committee

>Motion by Finance Committee (per Chairperson) and seconded: *"Recommend and move that the Town raise and appropriate the sum of \$176,500 to pay debt excluded interest and principal due FY23 on funds borrowed for the Facilities Building Project, Article 22 voted at the May 21, 2018 Annual Town Meeting."*

Motion to approve Article 35 passed by a show of voting cards.

ARTICLE 36: To see if the Town will vote to raise and appropriate the sum of money and transfer from Free Cash the sum of money to be added to the Capital Purchase Stabilization Fund; or, take any other action thereon.

Sponsor: Finance Committee

>Motion by Finance Committee (per Chairperson) and seconded: *"Recommend and move that the Town transfer the sum of \$598,644 from the certified Free Cash to the Capital Purchase Stabilization Fund."*

Motion to approve Article 36 passed by a show of voting cards.